

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Santosh Prakash	Team: Squad #16	CCRB Case #: 202102575	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 04/17/2021 2:50 AM	Location of Incident: 27th Avenue and 8th Street	18 Mo. SOL 10/17/2022	Precinct: 114		
Date/Time CV Reported Sat, 04/17/2021 3:52 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/26/2021 11:37 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM William Presky	13524	961121	PSA 9
2. POM Justin Burns	10094	960296	PSA 9
3. SGT Michael Carrieri	03466	930412	PSA 9

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christopher Singh	01593	961288	PSA 9
2. POM Michael Alpers	18406	958234	PSA 9

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM William Presky	Abuse: Police Officer William Presky stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Justin Burns	Abuse: Police Officer Justin Burns stopped the vehicle in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . SGT Michael Carrieri	Abuse: Sergeant Michael Carrieri stopped the vehicle in which § 87(2)(b) was an occupant.	C . Unsubstantiated
D . POM Justin Burns	Abuse: Police Officer Justin Burns stopped § 87(2)(b)	D . Exonerated
E . POM Justin Burns	Abuse: Police Officer Justin Burns stopped § 87(2)(b)	E . Exonerated
F . POM Justin Burns	Abuse: Police Officer Justin Burns frisked § 87(2)(b)	F . Substantiated
G . SGT Michael Carrieri	Abuse: Sergeant Michael Carrieri frisked § 87(2)(b)	G . Substantiated
H . SGT Michael Carrieri	Abuse: Sergeant Michael Carrieri searched § 87(2)(b)	H . Substantiated
I . POM William Presky	Abuse: Police Officer William Presky searched § 87(2)(b)	I . Substantiated
J . POM Justin Burns	Abuse: Police Officer Justin Burns searched the vehicle in which § 87(2)(b) was an occupant.	J . Exonerated
K . SGT Michael Carrieri	Abuse: Sergeant Michael Carrieri searched the vehicle in which § 87(2)(b) was an occupant.	K . Exonerated
L . SGT Michael Carrieri	Abuse: Sergeant Michael Carrieri searched the vehicle in which § 87(2)(b) was an occupant.	L . Substantiated
M . SGT Michael Carrieri	Abuse: Sergeant Michael Carrieri threatened to seize § 87(2)(b) property.	M . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
N . SGT Michael Carrieri	Abuse: Sergeant Michael Carrieri failed to provide § 87(2)(b) with a business card.	N . Substantiated
O . SGT Michael Carrieri	Abuse: Sergeant Michael Carrieri failed to provide § 87(2)(b) with a business card.	O . Substantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

On April 17, 2021, § 87(2)(b) filed this complaint with IAB generating log § 87(2)(b). CCRB received this case on April 26, 2021.

On April 17, 2021, at approximately 2:50 AM, § 87(2)(b) was driving her vehicle with fellow occupants § 87(2)(b) and § 87(2)(b) when she was pulled over by PO William Presky, PO Justin Burns, and Sgt. Michael Carrieri PSA 9 for an alleged traffic infraction (**Allegations A-C - Abuse of Authority: Unsubstantiated**). Upon observing an open container of alcohol inside the vehicle, Sgt. Carrieri, PO Presky, and PO Burns conducted a further investigation, along with the assistance of back-up officers PO Christopher Singh and PO Michael Alpers (all assigned to PSA 9). In addition to § 87(2)(b) PO Burns asked § 87(2)(b) for identification as well (**Allegation D – Abuse of Authority: Exonerated**). When officers ran a warrant check on § 87(2)(b) they found an active I-Card in his name with probable cause to arrest. § 87(2)(b) was ordered out and frisked. Next, PO Burns told § 87(2)(b) to exit the vehicle and frisked him (**Allegation E – Abuse of Authority: Exonerated and Allegation F – Abuse of Authority: Substantiated**). At Sgt. Carrieri's direction, § 87(2)(b) was then frisked again and searched (**Allegations G and H - Abuse of Authority: Substantiated**). PO Presky then ordered § 87(2)(b) out and involuntarily made her empty her pockets (**Allegation I – Abuse of Authority: Substantiated**). PO Burns and Sgt. Carrieri then searched the passenger compartment of the vehicle but did not recover any additional contraband (**Allegations J and K - Abuse of Authority: Exonerated**). Due to the existence of the active I-Card, § 87(2)(b) was eventually handcuffed and placed under arrest (BR01-02). § 87(2)(b) and § 87(2)(b) however, were ultimately released without being issued any summonses or citations. Just before ending his interaction with § 87(2)(b) Sgt. Carrieri ordered § 87(2)(b) to open her trunk without cause (**Allegation L – Abuse of Authority: Substantiated**) and threatened to seize her property if she did not do so (**Allegation M - Abuse of Authority: Substantiated**). Neither § 87(2)(b) nor § 87(2)(b) received a business card from Sgt. Carrieri, the highest-ranking officer on scene (**Allegation N and O - Abuse of Authority: Substantiated**). § 87(2)(g), § 87(4-b)

Body-Worn camera (BWC) footage of the incident was recovered from all five of the involved officers on scene (BR03-07). The relevant video was summarized (BR08).

This case was previously assigned to Investigator Joseph Hennessy; upon his departure from the agency, it was reassigned to Investigator Santosh Prakash on May 11, 2022.

Allegation (A) Abuse of Authority: Police Officer William Presky stopped the vehicle in which

§ 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer Justin Burns stopped the vehicle in which

§ 87(2)(b) was an occupant.

Allegation (C) Abuse of Authority: Sergeant Michael Carrieri stopped the vehicle in which

§ 87(2)(b) was an occupant.

Allegation (D): Abuse of Authority: Police Officer Justin Burns stopped § 87(2)(b)

Allegation (E): Abuse of Authority: Police Officer Justin Burns stopped § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Justin Burns frisked § 87(2)(b)

Allegation (G): Abuse of Authority: Sergeant Michael Carrieri frisked § 87(2)(b)

Allegation (H): Abuse of Authority: Sergeant Michael Carrieri searched § 87(2)(b)

Allegation (I): Abuse of Authority: Police Officer William Presky searched § 87(2)(b)

§ 87(2)(b) was interviewed on May 4, 2021 (BR09). § 87(2)(b) declined to provide a

statement to the CCRB. The investigation was unable to obtain a statement from § 87(2)(b). Sgt. Carrier was interviewed on February 16, 2022 (BR10). PO Burns and PO Presky were interviewed on February 17, 2022 (BR11-12).

The following facts are undisputed. On April 17, 2021, at approximately 2:50 AM, after being pulled over in her vehicle with § 87(2)(b) and § 87(2)(b) was advised by Sgt. Carrieri that she was being detained for failing to obey a stop sign. § 87(2)(b) was sitting in the front passenger seat and § 87(2)(b) was sitting in the rear seat. § 87(2)(b) provided her driver's license and registration. While verifying that the latter was not expired, Sgt. Carrieri learned from § 87(2)(b) that her vehicle was equipped with a breathalyzer ignition lock. At about the same time, Sgt. Carrieri and PO Burns observed what appeared to be an open container of liquor lying on the floor of the rear seat near § 87(2)(b) feet. PO Burns obtained § 87(2)(b) identification as a result. As he handed § 87(2)(b) identification to Sgt. Carrieri, PO Burns relayed to him that he had observed a "small knife" clipped to § 87(2)(b) pants pocket. After a warrant check on § 87(2)(b) showed an active I-CARD with probable cause to arrest, § 87(2)(b) was removed from the vehicle, frisked, and searched. PO Burns then ordered § 87(2)(b) to exit the vehicle and proceeded to frisk him as well. PO Presky ordered § 87(2)(b) out and searched her. Finally, Sgt. Carrieri instructed a responding back-up officer, PO Michael Avers, to frisk and search § 87(2)(b). Upon confirming that the I-CARD was active, § 87(2)(b) was handcuffed and placed under arrest. § 87(2)(b) and § 87(2)(b) were ultimately released without being issued any summonses.

At issue is whether the vehicle stop was lawful at its inception. Also at issue is whether the officers' actions with respect to § 87(2)(b) and § 87(2)(b) were lawful.

§ 87(2)(b) denied committing any traffic infractions and said she had obeyed the stop signs. While she said that the parties had consumed alcohol earlier in the night and acknowledged the presence of two open containers of alcohol in the vehicle – one on the rear floor and the other somewhere in the front – § 87(2)(b) stated that she was sober at the time, asserting that her ignition lock would not have permitted the vehicle to start if the breathalyzer had detected her blood alcohol content over .04. Additionally, when PO Presky asked if there were any weapons in the vehicle, § 87(2)(b) said she told him that she was carrying a small pocketknife. When she was subsequently ordered to exit with the other occupants, PO Presky attempted to frisk her; however, she stopped him from doing so by objecting to being touched by a male and offered to empty her pockets for inspection instead.

Sgt. Carrieri, PO Burns, and PO Presky all stated that they observed § 87(2)(b) drive through a stop sign in the vicinity of 7th Avenue and 4th Street. All three officers stated that they observed, early on during the stop, that there was an open container in the rear of the vehicle. PO Burns added that he also noticed the second open container and a knife of "considerable size" in the front center console. When PO Burns then spoke with § 87(2)(b) about the open container by his feet, he saw a knife clipped to the right side of his waistband. PO Burns only saw the knife's hilt and could not further describe the instrument. Sgt. Carrieri said he also confirmed that § 87(2)(b) was carrying a knife when PO Burns told him about it but could not describe the blade in further detail either. Neither Sgt. Carrieri nor PO Presky testified to seeing any additional knives in plain view. Sgt. Carrieri and PO Burns both stated that § 87(2)(b) identification was obtained because he was closest to the open container. Upon learning about the active I-CARD, Sgt. Carrieri and PO Burns stated that § 87(2)(b) was ordered out of the vehicle and PO Singh frisked and searched him. PO Burns then ordered § 87(2)(b) out of the vehicle, and then PO Presky ordered § 87(2)(b) to exit. PO Burns stated that he frisked § 87(2)(b) as a precautionary measure. Sgt. Carrieri stated he ordered § 87(2)(b) to be frisked and searched again because he wanted to be

certain that he had no weapons on him. Besides referring to the presence of the knives (PO Burns said he saw two – the one on § 87(2)(b) and the other in the center console – while Sgt. Carrieri only spoke about the one on § 87(2)(b) person, which he characterized as a “gravity knife” without elaborating further), the officers provided no other reasons for these measures.

PO Burns’, Sgt. Carrieri’s, PO Presky’s and PO Singh’s BWCs show the following key events transpire during the stop. At 11:53 of PO Burns’ BWC, PO Burns asks § 87(2)(b) for his ID after observing the open container in the rear seat area (BR04). In Sgt. Carrieri’s BWC, upon obtaining § 87(2)(b) identification, PO Burns and Sgt. Carrieri conduct a warrant check and together find an open I-Card in his name with probable cause to arrest (11:00-12:00; BR03). Sgt. Carrieri confirms via phone call (to whom he speaks to is unclear) that the I-Card is active. At approximately 16:00 minutes, a back-up unit identified as PO Singh and PO Alpers arrive on scene. At approximately 16:33 minutes, Sgt. Carrieri informs PO Singh about the active I-Card and knife on § 87(2)(b) person. In PO Singh’s BWC, Sgt. Carrieri then orders § 87(2)(b) out of the vehicle, at which point PO Singh conducts a pat-down frisk from his waist to his ankles (2:00 – 2:30; BR06).

Next, PO Burn’s BWC shows him telling § 87(2)(b) to exit the vehicle and then patting him down from his waist to his legs (20:20 – 20:40 minutes; BR04). In PO Alpers’ BWC, as § 87(2)(b) is then sent to stand at the rear of the vehicle, Sgt. Carrier tells PO Alpers, “Search him again – frisk him again,” at which point PO Alpers conducts a pat-down frisk and enters § 87(2)(b) jacket pockets (3:06 – 3:40; BR07).

At about the same time, PO Presky’s BWC (beginning at about 21:30 minutes) shows him ordering § 87(2)(b) to exit (BR 05). PO Presky tells § 87(2)(b) that he is going to frisk her and asks her if she has pockets on her hooded sweatshirt. § 87(2)(b) responds, “Technically, you are a man – you shouldn’t be touching me.” PO Presky tells her, “I have to search you for weapons.” § 87(2)(b) then says, “You shouldn’t have to touch me though you are a man...” PO Presky begins to say something inaudible, at which point § 87(2)(b) states, “I can empty my pockets.” PO Presky agrees, stating, “Okay, empty your pockets.” (21:30 – 21:55). The footage does not clearly show what, if anything, § 87(2)(b) removes from her pockets. After Sgt. Carrieri and PO Burns finish searching the vehicle (further discussed in the following sections) PO Singh eventually handcuffs and searches § 87(2)(b) after Sgt. Carrieri formally confirms his arrest (the footage does not clearly show exactly when his knife is removed) (27:00 – 30:00; BR04).

While § 87(2)(b) arrest report notes that a “cutting instrument” (BR01) was found to be in his possession, no other specifics regarding the object are specified, and there is no documentation to support Sgt. Carrieri’s statement that the instrument was a “gravity knife.”

As stated previously, the BWC footage does not clearly show exactly when and from where § 87(2)(b) “cutting instrument” was recovered. Furthermore, the BWC footage does not exactly corroborate PO Burns’ assertion that he observed a second knife in plain view (presumably § 87(2)(b) in the center console prior to searching the vehicle. As discussed in the next section, the second knife belonging to § 87(2)(b) was discovered inside the vehicle by PO Burns – but this was ultimately returned to her. No other contraband or weapons were recovered from either the occupants or the vehicle. At the conclusion of the vehicle stop, § 87(2)(b) was arrested. Neither § 87(2)(b) nor § 87(2)(b) was arrested or issued a summons.

New York State Vehicle and Traffic Law (VTL) §1227 prohibits the possession of open containers containing alcohol in a vehicle (BR14). Officers with probable cause to suspect a violation of VTL § 1227 are authorized to conduct a warrantless search of the passenger compartment of the vehicle

to recover any open containers (BR15: People v Brooks, 23 AD3d 847 [2005], BR16: People v Boykin, 188 AD3d 1244 [2020]).

An officer is permitted to stop an individual if they have reasonable suspicion of that individual's criminality. "As a corollary to the right to stop," an officer also has the authority to "frisk a detained individual, if they believe "[they are] in danger of physical injury by virtue of the detainee being armed." A detainee may not be searched unless under lawful arrest (BR17: People v De Bour, 40 N.Y.2d 210 [1976]).

An officer may conduct a protective frisk only when there is a "threat of physical injury or reasonable suspicion that the person is armed." (De Bour at BR17) However, an officer must have "specific and articulable facts" regarding the threat; "conclusory" assertions and observations will not suffice (BR18: People v Brannon, 16 NY3d 596, 605 [2011]). Furthermore, per NYPD Patrol Guide (P.G.) Procedure 212-11, a frisk may not be conducted solely to discover contraband or evidence of a crime (BR19: P.G. 212-11).

§ 87(2)(g)

It is therefore recommended that **Allegations A-C** be closed as **Unsubstantiated**.

§ 87(2)(g) the undisputed presence of an open container of alcohol inside the vehicle in plain view, § 87(2)(g)

Therefore, it is recommended that **Allegation D** and **Allegation E** be closed as **Exonerated**.

Although the officers found an active I-Card in § 87(2)(b) name after running his identification, § 87(2)(g)

Furthermore, neither the testimonial nor the video evidence shows that the officers had arrested, or were in the process of arresting, § 87(2)(b) or § 87(2)(b) for possessing an open container – a traffic infraction. § 87(2)(g)

§ 87(2)(g)

The BWC footage does not show the officers being aware or concerned of the presence of this knife (which was eventually returned to § 87(2)(b) § 87(2)(g)

the video footage shows that § 87(2)(b) and § 87(2)(b) never made any furtive movements or acted in a manner that could be construed as threatening. More importantly, there is no evidence – in the BWC or the testimonial record – to suggest that § 87(2)(b) or § 87(2)(b) presented any bulges or outlines indicative of a concealed weapon when they were outside the vehicle. § 87(2)(g)

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegations F-I** be closed as **Substantiated**.

Allegation (J) Abuse of Authority: Police Officer Justin Burns searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (K) Abuse of Authority: Sergeant Michael Carrieri searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (L) Abuse of Authority: Sergeant Michael Carrieri searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (M) Abuse of Authority: Sergeant Michael Carrieri threatened to seize § 87(2)(b) property.

It is undisputed that Sgt. Carrieri and PO Burns searched the interior of the vehicle after the occupants were removed. It is also undisputed that two more knives were recovered from the vehicle, and that both objects were ultimately given back to § 87(2)(b).

Sgt. Carrieri and PO Burns both stated that they searched the vehicle to ensure that no additional weapons or contraband were present inside (BR09-10).

PO Burns' BWC footage shows him searching the front seats and front door side compartments (beginning at approximately 26:50; BR04), while Sgt. Carrieri BWC shows him searching the rear interior of the vehicle (at approximately 20:15; BR03). PO Burns' BWC footage shows him removing two objects from the front passenger door's side compartment: a sheathed knife approximately six inches long; and a small foldable knife approximately two to three inches long (27:15-27:25, BR04). PO Burns places the two knives on the hood. Sgt. Carrieri then moves the items to the sidewalk. Over the next 60 seconds, Sgt. Carrieri asks § 87(2)(b) and § 87(2)(b) to get back into their vehicle and advises that they are free to leave.

While there is initially no conversation, between PO Burns and Sgt. Carrieri, or between the officers and § 87(2)(b) about the two recovered knives, Sgt. Carrieri's BWC footage shows § 87(2)(b) reminding Sgt. Carrieri that her knives are still with him. Sgt. Carrieri retrieves the items on the sidewalk and asks § 87(2)(b) to open her trunk so he can put the knives inside. When § 87(2)(b) suggests that he can just throw them into the rear seat of the vehicle, Sgt. Carrieri says that he needs to place them in the trunk, stating: "If you want it, let me know. Otherwise, we'll take it." § 87(2)(b) says, "I want my shit." Sgt. Carrieri says, "Alright, then open your trunk." At this point, § 87(2)(b) steps out, opens the trunk, and appears to take possession of the items. Sgt. Carrieri walks away without any further interactions with § 87(2)(b) and without making any contact with the trunk itself (30:00 – 31:00, BR03).

As cited previously, officers with probable cause to suspect a violation of VTL §1227 – which

prohibits the possession of open containers containing alcohol in a vehicle – are authorized to conduct a warrantless search of the passenger compartment of the vehicle (People v Brooks, 23 AD3d 847 [2005]; BR15) (People v Boykin, 188 AD3d 1244 [2020]; BR16). In Brooks, for example, the court ruled that an officer’s observation of a six-pack carton of beer with only one bottle remaining provided sufficient probable cause to suspect a violation of VTL §1227, thus justifying a vehicle search for open containers of alcohol.

In People v. Belton, 55 N.Y.2d 49 [1982], the New York Court of Appeals ruled that: “Where police have validly arrested an occupant of an automobile, and they have reason to believe that the car may contain evidence related to the crime for which the occupant was arrested or that a weapon may be discovered... they may contemporaneously search the passenger compartment of the vehicle or its visible contents.” The Belton court stressed though that its ruling was limited to the “passenger compartment” and its “visible contents” – that “the specific area that may be searched is clearly delineated.” Consequently, probable cause to search the passenger compartment of a vehicle does not necessarily justify a trunk search as well, unless: additional factors give cause to expand the scope of the search to the trunk; or the owner gives free and voluntary consent to open and search the trunk (BR20).

“Consent to search is voluntary when it is a true act of the will, an unequivocal product of an essentially free, and unconstrained choice. Voluntariness is incompatible with official coercion, actual or implicit, overt or subtle. Where there is coercion there cannot be consent.” (BR21: People v Gonzalez, 39 NY2d 122, 124 [1976])

§ 87(2)(g) the undisputed presence of the container of partially consumed alcohol in the vehicle, § 87(2)(g) (g) It is thereby recommended that **Allegation J** and **Allegation K** be **Exonerated**.

§ 87(2)(g) (the BWC footage in fact shows that the search had concluded, with the other officers having already returned to their vehicles). § 87(2)(g) it is hereby recommended that **Allegation L** and **Allegation M** be **Substantiated**.

Allegation (N) Abuse of Authority: Sergeant Michael Carrieri failed to provide § 87(2)(b) with a business card.

Allegation (O) Abuse of Authority: Sergeant Michael Carrieri failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) alleged that she received no business card.

Sgt. Carrieri's BWC footage, which captures the entire timeframe of the incident, shows him leaving the scene at the conclusion of the stop without offering to provide either § 87(2)(b) or § 87(2)(b) with his business card.

Per New York City Administrative Code 14-174, officers must offer a business card to the subject of any law enforcement activity involving the frisk and/or search of an individual and/or vehicle, when that activity did not result in the subject being arrested or summonsed (BR22).

§ 87(2)(g) It is therefore recommended that **Allegation N** and **Allegation O** be **Substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Presky has been a member-of-service for six years and this is the first CCRB complaint to which he has been a subject
- PO Burns has been a member of service for six years and has been a subject in two CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Carrieri has been a member of service for eighteen years and has been a subject in eight CCRB complaints and 20 allegations, of which seven were substantiated.:
 - 201501713 involved a substantiated allegation of Abuse of Authority – Vehicle Search against Sgt. Carrieri. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
 - 201604752 involved substantiated allegations of Abuse of Authority – Frisk, Abuse of Authority – Question, Abuse of Authority – Search (of person), and Abuse of Authority – Stop against Sgt. Carrieri. The Board recommended formalized training and the NYPD imposed formalized training.
 - 201606271 involved substantiated allegations of Discourtesy – Word and Discourtesy – Action against Sgt. Carrieri. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.

- As of October 12, 2021, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regard to this incident. Another request was subsequently submitted on July 26, 2022; positive results will be added to the case file upon receipt (BR24).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad: 16

Investigator: /sprakash Inv. Santosh Prakash 7/26/22
Signature Print Title & Name Date

Squad Leader: Patrick Yu IM Patrick Yu 07/27/2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date